Fort Bend County District Court

Cause No. 2024-CV-0022

Karen Gonzalez, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Karen Gonzalez

Date:	June 10, 2024
Location:	Offices of Morris & Miller LLP
Examining attorney:	Stephanie Williams, Ashford & Lyle LLP
Defending attorney:	Joshua Whitney, Morris & Miller LLP

Q: Please state your full name for the record.

A: I'd rather just say I'm the plaintiff in this case, but I understand you need the formal answer. I'm the person who was driving the gray sedan.

Q: Thank you. Let's talk about the accident itself. Where were you when it happened?

A: I was on the feeder road near League City, heading toward the interchange. I was in the right lane because I needed to exit a few hundred yards ahead.

Q: And what happened next?

A: The other vehicle was in the lane to my left, and it started drifting over. I honked and tried to move to the right, but the car clipped the rear quarter panel of mine. It spun my car a little and I felt a hard jolt through my neck and shoulders.

Q: Did the other driver stop?

A: Yes, they pulled onto the shoulder about fifty feet up. The driver said they didn't see me, which I didn't really believe, because they were looking at their phone at the time.

Q: Did you have any pain right after the collision?

A: Not right away, honestly. I got out, looked at the car, and thought I was fine. By the next morning my neck was stiff and I had a headache that wouldn't go away. Turning my head to check mirrors hurt badly.

Q: Did you seek medical treatment?

A: I went to an urgnet care clinic that same week, and then my family doctor referred me to physical therapy. They diagnosed whiplash and gave me a neck brace for a few weeks.

Q: How often have you attended physical therapy?

A: Usually two or three times a week. Some sessions were better than others. The therapist had me doing stretches at home too, which I try to keep up with.

Q: How has this affected your daily life?

A: It's made simple things hard. I used to coach my daughter's soccer team on weekends, and I had to hand that off to my husband for most of the season. I can't sit through a long drive without my neck locking up. Sleeping is harder too, because I wake up if I roll onto my left side.

Q: Have you returned to work?

A: Yes, I went back after about a week, but I was on lighter duties for a while. Sitting at my desk for hours is still uncomfortable, and I take breaks I didn't need before.